Your Health

Point 1: The Doctrine

We discussed two major approaches to causation:

Reasonably foreseeable. This is the common law rule, and under it, the victim's act only breaks the chain of causation if their volition-obliterating fear or despair is "reasonable."

MPC & "just bearing." The MPC does not say anything about intervening acts. You have to rely on the language it provides: "not too accidental or remote" to have a "just" bearing" on the liability of the defendant.

Point 2: Moral Intuitions

Result crimes require that criminal conviction only obtain in cases where the defendant *caused* the forbidden outcome. They need not be the only cause; they need only have substantially contributed to or accelerated the forbidden result.

There are now dozens (maybe even hundreds) of studies showing that beliefs about causation are deeply tied to moral intuitions about blame, and that the pathway runs in both directions. Humans want to say that people they believe are immoral cause bad things to happen.

Point 3: Institutional Choice

The choice is just about how one should decide a case (or, more realistically, describe the decision arrived at through moral intuition). It is also about *who* gets to decide.

Under the majority rule -- the reasonably foreseeable standard -- judges may make that determination as a matter of law. Under the Model Penal Code approach, the jury is the arbiter under the “not too accidental or remote” standard.

Who do you trust to make the better call?

Point 4: Strategy

If you know that judges' and jurors' notions about causation are going to be based on character, what do you do?

When you take evidence law, you'll see exactly what lawyers do: they talk about character every time they get the chance.

Don't think Courts aren't wise to this game. The most intricate rules of evidence govern when you can and can't introduce character evidence. Lawyers are constantly looking for ways around them because they know how powerful character evidence is in shaping outcomes – regardless of which doctrine is employed.

Omissions

When is doing nothing
like doing something?

The Doctrine

MPC Section 2.01. Requirement Of Voluntary Act; Omission As Basis Of Liability

1. A person is not guilty of an offense unless his liability is based on conduct which includes a voluntary act or the omission to perform an act of which he is physically capable. [. . .]

    (3) Liability for the commission of an offense may not be based on an omission unaccompanied by action unless:

        (a) the omission is expressly made sufficient by the law defining the offense; or

        (b) a duty to perform the omitted act is otherwise imposed by law.

The Doctrine

An omission can be the basis for a conviction of manslaughter only if there is a duty, and there is such a duty only in five circumstances:

(a) where there is a specific statutory duty to care;

(b) a certain status relationship to another requires action;

(c) where there is a contractual duty to care; and

(d) where one has voluntarily assumed the care of another under circumstances in which that person becomes dependent on defendant.

(e) where one has created significant peril and fails to mitigate the resulting harm.

Status: *People v. Beardsley*

Question

*Why would it be **"repugnant to our moral sense"** to expect Beardsley to care for this woman?*

The status of one kind of relationship depends on it being held as distinct from other kinds of relationships. If a casual relationship holds the same privileges and duties as marriage, marriage is devalued.

Special Relationships

The Cases & Statutes

Status Relationship: *Beardsley*

Contractual: *Pestinikas*

Voluntary Assumption of Care: *Pope*

Creation of Peril: *Voss*

Statutory: Vermont

VT Stat. Ann. tit. 12, Section 519

Europeans: Serious penalties of a year or more in prison.

Vermont: What is the penalty in Vermont?

Low Penalty: Even if a person dies, it's only $100 fine.

Hypo: Is that the end of the story in Vermont? What if you had an aggressive and creative prosecutor?

Untested Implications: Once a person has a legal duty to act, that person can be held criminally responsible for the death. We'll get to homicide in a couple weeks.

Deaths in Custody

***Estelle*:** "[D]eliberate indifference to serious medical needs of prisoner" violates the Eighth Amendment and provides grounds for prosecution.

***Winnebago*:** "[W]hen the State takes a person into its custody and holds him there against his will, the Constitution imposes upon it a corresponding duty to assume some responsibility for his safety and general well-being."

***Farmer*:** Breach of duty ("deliberate indifference") requires actual awareness of a substantial and unjustifiable risk (recklessness).

Custodial Neglect

Failure to provide medical aid: Relatively recently, jail nurses have been charged after a person in custody died. These typically include cases where there are clear signs of medical distress and no intervention.

Dangerous Restraints: There have also been cases where correctional staff have been charged with negligent homicide for use of restraints in circumstances that create peril.

Corporate Neglect: The corporation responsible for the custody can also be convicted where employees engage in conduct that constitutes a crime. In many jurisdictions, the mental state can be a “mosaic” or “collective” mental state that aggregates across employees.

Derek Chauvin & George Floyd Case

For killing George Floyd, Chauvin was convicted of unintentional second-degree murder, third-degree murder, and second-degree manslaughter and sentenced to 22.5 years in prison.

Thao, Kueng, and Lane

Thao argued he was a “human traffic cone” that was just managing the crowd. The jury convicted, viewing him instead as isolating Floyd from assistance.

Kueng & Lane argued that Chauvin was their superior, so that it was unreasonable for them to intervene. The jury convicted, agreeing with the prosecution that a duty to intervene in a life-threatening situation supersedes departmental hierarchy.

Farmer & Consciousness of the Risk

We will discuss these cases in greater detail when we get to homicide. For now, just understand that the failure to intervene was, for each of these three officers, and omission where there was a duty to act.

How did the jury determine that the *Farmer* standard of conscious disregard for a substantial and unjustifiable risk of death or serious bodily injury had been met?

Largely by the continuous shouting of bystanders that Chauvin was killing Floyd.

Corporate Omissions

***New York Central*:** a corporation can be convicted based on a single employee's conduct within the scope of employment.

***Dotterwitch*:** corporate officers can be personally liable even without knowledge of a statutory violation.

***Park*:** a corporate officer with “responsibility and authority either to prevent in the first instance, or promptly correct” a violation has a duty to act.

Statutory Report Duties

***Gree Electric*:** Executives learned their dehumidifiers were overheating and catching fire, but continued selling defective units and delayed reporting for months causing 450 fires. Failure to report a defect is a chargeable omission.

***Peanut Corporation of America*:** Executive knew that salmonella had been detected, but sent an email that said “just ship it.” 9 deaths and thousands sickened.

***Decoster*:** Executives were unaware of a salmonella contamination, but failed to prevent or remedy “the conditions which gave rise” to contamination.

Misbranding

***Purdue*:** Three executives pleaded guilty to strict liability misdemeanors under the *Park* Doctrine. Their punishment: probation, fines, and community service.

***GlaxoSmithKline*:** Omitted safety data from required FDA reports & pleaded guilty to three federal crimes, including one count of failing to report safety data for Avandia.

***Boeing*:** Concealed the significance of a flight control system called MCAS from the FAA, airlines, and pilots. DPA and 2.5 billion in fines.

The Anderson Effect

Arthur Anderson: Prosecution for Enron-related failures to report effectively dissolved the corporation. The subsequent DOJ approach: deferred prosecution agreements leading to non-prosecution agreements.

What About Exxon & API Members?

DC is suing Exxon for violation of consumer protection statutes that require reporting known risks associated with a product. They argue that Exxon knew it was generating “globally catastrophic” climate change, but advertised products as “green” and as producing “reduced”emissions. If they prevails, is there a case for reckless endangerment?

What About OpenAI, X, and Anthropic?

What risks are they aware of?

Are they notifying the public?

Are they taking appropriate steps to mitigate the risk of serious harms?